

		disputed, it appears if anything, he may have clicked a stand alone "I AGREE" box and submitted that selection in Workday. (Decl. of Poinha, Ex. D). However, asking an employee to click on an "I AGREE" box, without identifying that the employee is agreeing to "ARBITRATION" does not establish a mutual consent to give up his right to a jury or Court trial. For this reason, the Motion is DENIED. The Court does not reach the issue of unconscionability, but notes that the above process appears procedurally unconscionable and full of surprise for the unsuspecting employee, especially considering, "All legal agreements between myself and Envista were signed by hand or using DocuSign. I never once signed a document that I understood to be a legal agreement with Envista using Workday." (Decl. of Armstrong¶10.) OBJECTIONS (ROA 46): Overruled, except as to No. 3 which is sustained. <i>Plaintiff to give notice.</i>
109	Aguirre vs. Davita, Inc. 24-01394742	<i>Continued to 9/10/2026.</i>
110	East Orange County Water District vs. Performance Pipeline Technologies, 22-01299697	Defendant Performance Pipeline Technologies ("defendant" or "PPT") moves for summary judgment in its favor. In the alternative, PPT asks for summary adjudication of eight issues. Plaintiffs Association of California Water Agencies Joint Powers Insurance Authority and East Orange County Water District ("EOCWD") (together, "Plaintiffs") oppose the motion and alternative motion. The pleadings play a key role in a summary judgment motion and set the boundaries of the issues to be resolved at summary judgment. (<i>Jacobs v. Coldwell Banker Residential Brokerage Co.</i> (2017) 14 Cal.App.5th 438, 444.) The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues' " and to frame the outer measure of materiality in a summary judgment proceeding. (<i>Hutton v. Fidelity National Title Co.</i> (2013) 213 Cal.App.4th 486, 493.) Thus, the analysis